



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 5TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 1ST DAY OF FEBRUARY, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA
HON. MARLON T. BANDELARIA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

COUN. ROSSANO C. VALENCIA
COUN. NESTOR F. DALIDA

- On Official Leave of Absence (FL)
- On Official Leave of Absence (FL)

Resolution No. 037-2021

RESOLUTION ADOPTING AN ORDINANCE REVISING MUNICIPAL ORDINANCE NO. 289-2015 INCREASING THE MINIMUM DAILY WAGE OF JOB ORDER EMPLOYEES OF THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE TO THREE HUNDRED TEN PESOS (P 310.00), PROVIDING GUIDELINES AND APPROPRIATING FUNDS THEREOF

WHEREAS, the Local Government Code of 1991, provides that the Local Chief Executive may employ emergency or casual employees or laborer paid on a daily wage or piece work basis and hired through job order for local projects authorized by the sanggunian without need for approval or attestation by the Civil Service Commission provided that the period of employment of emergency casual laborers shall not exceed six (6) months;

WHEREAS, for more than fourteen years, the existing daily wage of job order employee in the municipal government of Daet, Camarines Norte were fixed in the amount of One Hundred Fifty Pesos (P150.00) per day from 2005 to 2015, and Two Hundred Sixty Pesos (P260.00) per day from 2015 to 2019, which is below the standard minimum wage provided by the Department of Labor and Employment (DOLE) wage order in Bicol Region;

WHEREAS, fixing the rate of salary higher than the previous rates is timely, just and fair considering that job order employees plays a vital role in the daily operations of the municipal government and in the implementation of its programs and projects;

WHEREAS, this is consistent with the policy of the government to achieve higher level of productivity, generate employment and augment the income of workers through incentives;

NOW THEREFORE, after due deliberation, on motion of Councilor William Carlo R. Avila, with Councilors Tomasito Santiago C. Turingan and Rossano C. Valencia as co-authors, and Councilors Nestor F. Dalida, Marlon T. Bandelaria, Felix C. Abaño, and Apolonio B. Panong as co-movants, seconded by Councilors Judy Rose T. Gallardo and Ma. Eliza H. Llovit;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 397-2021

AN ORDINANCE REVISING MUNICIPAL ORDINANCE NO. 289-2015 INCREASING THE MINIMUM DAILY WAGE OF JOB ORDER EMPLOYEES OF THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE TO THREE HUNDRED TEN PESOS (P310.00), PROVIDING GUIDELINES AND APPROPRIATING FUNDS THEREOF

BE IT ORDAINED, by the Sangguniang Bayan of Daet, Camarines Norte that:

SECTION 1. TITLE. This ordinance shall be known as "Minimum Wage of Job Order Employees in the Municipal Government of Daet, Camarines Norte".

SECTION 2. DECLARATION OF POLICY. It is the policy of the Municipal Government of Daet, Camarines Norte to promote and provide just and humane compensation of the job order employees.

SECTION 3. DEFINITION OF TERMS. The following terms and phrases shall mean as follows:

- A. Contract of services and job orders refer to employment described as follows:
 - a. The contract covers lump sum work or services such where no employer-employee relationship exist;
 - b. The job order covers piece work or intermittent job of short duration not exceeding six months on a daily basis;
 - c. The contracts and job orders are not covered by Civil Service Law, Rules and Regulations, but covered by the rules of the Commission on Audit;
 - d. The employees involved in the contracts or job orders do not enjoy the benefits enjoyed by government employees such as PERA and RATA;
- B. Qualification - refers to the minimum requirements for hiring contractual employees or job orders.
- C. Wage - refers to a fixed regular payment, typically paid on a daily, weekly or monthly basis to a job order employee.



Three Hundred Ten Pesos (P310.00), subject to the usual accounting and auditing procedures.

Consistent with the policy of the government to achieve higher level of productivity, generate employment and augment the income of workers through incentives; in case of new issuances of Wage Order by the Department of Labor and Employment, the same shall be applied.

SECTION 5. GENERAL GUIDELINES. The following guidelines shall apply in the implementation of this ordinance:

- a. Hiring of personnel under contract of service/job order shall be allowed for the following jobs/functions:
 - a.1 For piece work or an intermittent job of short duration not exceeding six (6) months and the pay is on a daily basis;
 - a.2 For jobs where the functions to be performed are clerical or administrative in nature or where the work is performed by the regular personnel but such services are needed in the exigency of service and is not feasible for the agency to hire said services under a casual or contractual appointment; and
 - a.3 For functions performed by driver, utility worker and street sweepers.
- b. The following prohibitions shall be implemented in hiring of personnel under contract of services of job order:
 - b.1. Those who have been previously dismissed from the service due to commission of an administrative offense;
 - b.2 Those who are covered under the rule of nepotism; and
 - b.3 Those who have reached the compulsory retirement age of sixty-five (65)
- c. Job order employee to be hired by the Municipal Government of Daet, Camarines Norte should be a resident voter of the municipality, they shall submit the following documents in support to their application:
 - c.1 Personal Data Sheet (PDS), Resume or Biodata
 - c.2 COMELEC ID or COMELEC Registration
- d. The concerned Unit/Department who is in need of job order shall submit to the Office of the Mayor a request for personnel under contract of service/job order supported by a justification for hiring and the statement of functions to be performed by the job order.
- e. The Mayor's Office through the Public Employment Service Office (PESO) shall be responsible in the screening and hiring of qualified job order employee and to be countersigned by the SB Chairman of the Committee on Personnel with the same responsibility.



- f. Prior to the issuance of the Office Order appointing the job orders, the masterlists shall be submitted to the Sangguniang Bayan for authorization through sanggunian resolution indicating the name, address, age, designation, office assignment and period of employment/contract.
- g. A personnel hired on a contract of service of job order shall be required to report to the office observing a work schedule as required by the agency.
- h. Job order shall be required to submit a duly signed Daily Time Record (DTR) together with the accomplishment report to support the claim for payment or salaries covering the period of service rendered.
- i. DTRs and supporting documents shall be submitted to the Public Employment Service Office (PESO) after the 15th day of the month for the period covering 16 to 31 of the preceding month. Processing of their salaries shall be done through a general payroll.
- j. In case hired job employee commits a serious offense such as dishonesty, insubordination, absenteeism, habitual tardiness and all other similar offenses, his/her appointment shall be subject for termination.
- k. The department/unit shall be responsible in monitoring the performance and attendance of job order assigned in their unit and shall report to the Public Employment Service Office (PESO) of their observations and recommendations.
- l. The Public Employment Service Office (PESO) shall be responsible in the implementation of this ordinance, and shall device a system for job order performance and attendance monitoring, processing of plantilla and payroll and other functions related to job order employees.

SECTION 6. EXEMPTIONS. For jobs that require special or technical skills and the same is not available in the agency, which is to be accomplished within a specific period not exceeding one (1) year, such as hiring of consultants and personnel engaged to perform work for special projects subject to Republic Act No. 1184 are exempted from this ordinance.

SECTION 7. SOURCE OF FUNDS. A budget allocation shall be appropriated annually in the General Fund and such other available sources from the municipal government for the implementation of this Ordinance.

SECTION 8. EFFECTIVITY. This Ordinance shall take effect upon approval subject to availability of funds.

ENACTED.

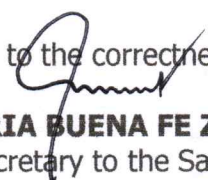
RESOLVED FURTHER, to furnish copies hereof, the Honorable Benito S. Ochoa, Municipal Mayor; Mrs. Caroline Maisie J. Robles, Municipal Accountant; Mrs. Jhoann S. Tatlonghari, Municipal Budget Officer; Mr. Rodante V. Forbes, Municipal Treasurer; Mr.



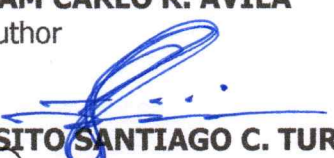
Rommel R. Carrascal, PESO Manager, all in Daet, Camarines Norte, and all others concerned for their information and appropriate action;

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:

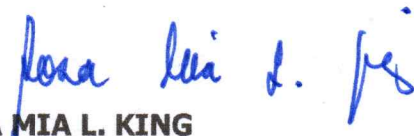

MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. WILLIAM CARLO R. AVILA
Author


COUN. TOMASITO SANTIAGO C. TURINGAN
Co-Author


COUN. ROSSANO C. VALENCIA
Co-Author

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: FEB 18 2021